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SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 31st of May, 2018

SECURITIES AND EXCHANGE BOARD OF INDIA
(EMPLOYEES' SERVICE) (SECOND AMENDMENT) REGULATIONS, 2018

No. SEBI/LAD-NRO/GN/2018/18.- In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to further amend the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, namely,—

1. These regulations may be called the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2018.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, -

(A) in regulation 3, in sub-regulation (1), -

(i) after the existing clause (f), the following new clause shall be inserted, namely, -

"(fa) "deputation" means temporary posting to another organisation wherein the accrual and disbursement of remuneration including pay, allowances and perquisites would be borne by the borrowing organisation."

(ii) after the existing clause (g), the following clause shall be inserted, namely,-

"(ga) "external assignment" means the temporary posting to another organisation, including secondment, tour of duty and staff exchange programme, wherein the accrual and disbursement of remuneration including pay, allowances and perquisites would be borne by the Board."

- (B) in regulation 65, in sub-regulation (3), for the words, numbers and symbols "sub-section (e) of Section (2) of the Securities and Exchange Board of India (Insider Trading) Regulations, 1992 and the provisions of the Securities and Exchange Board of India (Insider Trading) Regulations, 1992", the words, numbers and symbols "clause (g) of sub-regulation (1) of regulation 2 of the Securities and Exchange Board of India (Prohibition of Insider Trading) Regulations, 2015 and the provisions of the Securities and Exchange Board of India (Prohibition of Insider Trading) Regulations, 2015" shall be substituted.
- (C) in regulation 91, the words "permitted to join" shall be substituted with the words "deputed to the".
- (D) the existing regulation 92 shall be substituted with the following new regulation, namely, -

"Deputation and External Assignment

92. An employee of the Board may be sent on deputation or on external assignment to serve under any other employer:

Provided that such deputation or external assignment shall be pursuant to the approval of the Board and shall be in accordance with such terms and conditions as may be specified by the Board from time to time:

Provided further that an employee shall not be sent on deputation or on external assignment against his will."

Sd/-
AJAY TYAGI
CHAIRMAN
SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The Securities and Exchange Board of India (Employees' Service) Regulations, 2001, were published in the Gazette of India on 6th September, 2001 vide S.O. No. 857(E).

2. They were subsequently amended –

- (a) On 23rd December, 2003 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2003 vide F. No. SEBI/LE/15/2003.
- (b) On 25th May, 2004 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2004 vide S.O. No.623 (E).
- (c) On 11th April, 2007 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2007 vide F. No.11/LC/GN/2006/2143.
- (d) On 14th January, 2010 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2010 vide notification No. LADNRO/GN/2009-10/28/190983.
- (e) On 12th October, 2010 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2010-11/17/22954.
- (f) On 10th October, 2011 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2011 vide notification No. LAD-NRO/GN/2011-12/26/31671.
- (g) On 2nd May 2012 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2012 vide notification No. LADNRO/GN/2012-13/03/5290.
- (h) On 19th November 2012 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/223/5429.
- (i) On 8th October, 2013 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2013 vide notification No. LADNRO/GN/2013-14/27/6721.
- (j) On 26thFebruary, 2015 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2015 vide notification No. LADNRO/GN/2014-15/22/366.
- (k) On 21st April, 2015 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2015 vide notification No. SEBINRO/OIAE/GN/2015-16/002.
- (l) On 30th November, 2016 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/016.

- (m) On 15th December, 2016 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/024.
- (n) On 27th April, 2017 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/001.
- (o) On 17th May, 2017 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/002.
- (p) On 13th July, 2017 by Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2017 vide notification No. SEBI/LAD-NRO/GN/2017-18/010.
- (q) On 27th April, 2018 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/09.
